LOT PURCHASE AGREEMENT

This LOT PURCHASE AGREEMENT ("Agreement") is made as of this 3rd day of February 2021, by and between JTB Homes, LLC, a Michigan limited liability company of 1777 R W Berends Dr. SW, Wyoming, MI 49519 ("Builder") and of Wolven Investments, LLC, a Michigan Limited Liability Companies of 3115 Railway Dr., Byron Center, MI 49315, ("Seller") as follows:

AGREEMENT

NOW, THEREFORE, IN CONSIDERATION OF THE MUTUAL COVENANTS AND CONDITIONS SET FORTH HEREIN THE PARTIES AGREE AS FOLLOWS:

1. Lots. Seller agrees to sell and Builder agrees to purchase 18 units located in the development known as 43 North (the "Development"), Township of Algoma, Kent County, State of Michigan, as more specifically identified on Exhibit "A" attached hereto and incorporated herein by reference (the "Development").

2. Individual Lot purchase. The Builder will purchase a lot or lots from the seller for a speculation/ model home. The Builder also reserves the right to assign its lot purchase rights to a Purchaser who will purchase a lot so that the Builder may construct a home on that lot. The Purchaser of a new home will purchase the lot directly from the Seller. The Seller agrees to pay a sales commission of six (6) percent on the lot sale. If the Builder purchases a lot, the sales commission of six (6) percent will be deducted from the purchase price of the lot which will allow the Builder to pay a commission on the value of the lot at the close of the speculation/model home.

3. Exclusivity of Lot Purchase Agreement. The Builder will have exclusive rights to the lots and the Seller may not sell lots to any other party, as long as Builder buys the minimum number of lots on a yearly basis. This option to purchase starts upon the earlier of topcoat of asphalt of road or ability to obtain building permits in Phase 2 of the development, per paragraph 4(a) below. Builder to purchase a minimum of Six (6) lots in the first twelve (12) months after the completion of Phase 2, and a minimum of Ten (10) every twelve (12) months thereafter.

4. Other terms and conditions.
   a. This agreement is contingent upon the Builder' review and acceptance of the following:
      i. Grading of the lots
      ii. Completion and the availability of the utilities to each lot for Builder's use as follows: public water, sanitary sewer, stormwater system, gas, electric, telephone, cable tv, etc.
      iii. Builder able to obtain building permits from the municipality governing the project.
      iv. All lots/units in a Phase are recorded according to site condominium law.
   b. Buyer and Seller to mutually agree on the individual lot prices.

5. Purchase Price. The purchase price for each Lot is as shown on attached Exhibit B. The purchase price of each lot will be raised $1,500 after every 6 lot sales. The lot purchase prices will be reviewed on a regular basis, and any necessary reductions or increases will be based on activity. Builder to pay Seller a deposit of One Thousand Five Hundred Dollars ($1,500.00) per lot upon the signing of this agreement.

6. Payment of Real Property Taxes. All real property taxes or special assessments, dues and other assessments that shall become due and payable with respect to any Lot owned by Seller shall be paid by Seller before any penalty for non-payment attaches. Real property taxes for any Lot purchased by the Builder or the Purchaser for which Seller is paid the Purchase Price at a Closing shall be paid in accordance with the individual West Michigan Regional Purchase Agreement. The intent is that the Seller and Buyer will pay property taxes based upon Calendar Year Proration with Seller paying prorated share prior to close and Buyer paying prorated share after close.

7. Closing Schedule. Purchaser shall have the right to close on its purchase of any Lot and build one or more model/spec house pursuant to the following schedule:

   A. Complete construction of any model/spec home on the Lot not later than five (5) months following start of construction.

   B. Notwithstanding anything in this Paragraph 6 or otherwise in this Agreement to the contrary, Builder or its assigns shall have the right to purchase all remaining Lots at any time at its sole discretion.

   C. Seller acknowledges and agrees Builder has no obligation to purchase any of the Lots except as may otherwise be required by the terms of an individual West Michigan Regional Purchase Agreement entered into by the Seller and Builder to purchase an individual lot.

8. Seller's Closing Duties. At the Closing on each Lot, Seller shall deliver to the Builder or Purchaser, the following items, which shall be in a form and substance satisfactory to the Builder or Purchaser:

   A. Warranty Deed conveying to the Builder or Purchaser title to the Lot, executed and acknowledged by Seller in recordable form, subject only to Permitted Exceptions;

   B. An owner's policy of title insurance or equivalent coverage from a title company that is acceptable to the Builder or Purchaser (the "Title Policy") in an amount not less that the Purchase Price insuring Builder or Purchaser as owner of fee simple, indefeasible title to the Lot without standard exceptions, and subject only to the following permitted exceptions (the "Permitted Exceptions"): (1) the lien of ad valorem property taxes not yet due and payable, (2) utility easements serving the Lot, (3) other matters described in Sections 10 and 11 hereof, (4) any matter arising as a result of any act or omission of Purchaser; and (5) such other matters that are not objected to by the Builder or Purchaser. Seller shall select the title insurer and agency.

   C. Such other documents, including a signed Closing Statement, as are necessary and appropriate for the consummation of this transaction by Seller.

9. Purchaser's Closing Duties. At the Closing of each Lot, the Builder or Purchaser shall deliver to Seller, the Purchase Price, less any deductions and offsets described in a West Michigan Regional Purchase Agreement offering to purchase a lot, and such other documents, including a signed Closing Statement, as are necessary and appropriate for the consummation of this transaction by the Builder or Purchaser.

10. Closing Costs. At each Closing, Seller shall pay (i) all transfer and/or conveyance taxes, if any, assessed in connection with the Closing, (ii) the premium for the Title Insurance Policy, (iii) the closing fee charged by the title agency in connection with the closing of each transaction, and (iv) any assessments (sewer or otherwise) that currently exist against the Lot(s) and any other miscellaneous closing costs typically paid by the seller. Seller shall be responsible for and pay all past due real estate taxes and assessments at or prior to Closing.

11. Unstable Soils. Seller warrants that Lots are built in such a manner that the soils and soil capacities and bearing capacities are suitable for typical residential construction of one and two-story homes. To this end the seller grants the right to the Builder to excavate the lot prior to closing to insure that the lot contains suitable soils. Should the Builder encounter unstable or unsuitable soils in the excavation for footings and foundations the Builder may fill and cover over the excavation and the Builder or Purchaser may void without recourse the West Michigan Regional Purchase Agreement signed by the Builder or Purchaser with the Seller in regards to the lot purchase. Builder or Purchasers deposit will be returned as soon as possible. The Builder will do what is reasonable to fill and cover the excavation but will be held harmless by the Seller for any further action regarding the lot. The Seller and the Builder or the Purchaser may negotiate a resolution on how to proceed with the lot purchase.

12. Representations and Warranties of Seller. Seller herby represents and warrants to the Builder or Purchaser that to the best of the Seller's knowledge, as of the date hereof and on the date of Closing, which representations and warranties shall survive Closing, but without additional investigation by Seller:

A. Seller has not received any notice of, and has no knowledge of, existing violations on the Lots or any portion thereof any zoning, building, fire, health, pollution, environmental protection, hazardous or toxic substance or waste disposal law or ordinance.

B. At each Closing, there will be no parties in possessions of a Lot or entitled to possession thereof other than Seller. There will be no leases, agreements, options or other instruments of agreement in effect with respect to the Lots.

C. There are no existing or pending condemnations or sales in lieu thereof with respect to the Lots, or any part thereof, nor have any such actions, suits, proceedings or claims been threatened or asserted.

D. Seller has the right to, and will convey, to Purchaser good and marketable fee simple title to the Lots, free and clear of any and all liens and other encumbrances other than any liens created by Purchaser and the Permitted Exceptions.

E. All general real estate related property taxes and assessments shall have been paid when due. There are no delinquent assessments. No future assessments against the lots have been announced.

F. There is no litigation, proceeding or investigation pending or, to Seller's knowledge, threatened against or involving Seller or the Lots, and Seller does not know or have reason to know of any grounds for any such litigation, proceeding or investigation,

which could have an adverse impact on Purchaser or Purchaser's title to or use of the Lots, either before or after Closing.

G. All federal, state and local real estate, personal property and other taxes relating to the Lots (other than those not currently due and payable) shall be properly paid on or before the Closing. Seller has not received any notice of assessment or proposed assessment in connection with the Lots.

H. With the exception of the documents provided to the Purchaser, there are no reports, studies, appraisals, engineering reports, correspondence, agreements with governmental authorities, wetland studies or reports, flood plain studies or reports and/or other written information related to the Lots of which Seller is aware or that are in Seller's possession or control.

13. Sale and Assignment of Agreement. Builder shall have the right to assign all of its rights and delegate all of its obligations under this Agreement to newly created LLCs; or similar entities owned by affiliates or principals of the Builder and others, and managed by principals of Builder, provided however, that no assignment shall operate as a release of the Builder. Builder may assign its rights to purchase any Lot directly to one of its Purchasers by written giving notice to Seller thereof. Written notice shall be given by delivery of a properly executed West Michigan Regional Purchase Agreement signed by a Purchaser. Except as otherwise set forth above, neither party may assign its rights or delegate its obligations under this Agreement without the consent of the other party, which consent may be withheld in such other party's sole discretion.

14. Confidentiality. The parties hereto agree to keep the terms and provisions of this Agreement strictly confidential with the exception of disclosures to their respective attorneys, financial consultants, lenders, investors and other person or entities necessary for consummation of this Agreement and for Purchaser's purposes as provided above.

15. Miscellaneous.

A. TIME IS OF THE ESSENCE OF THIS AGREEMENT.

B. This Agreement shall be governed by and construed under the laws of the State of Michigan.

C. This Agreement supersedes all prior discussions and agreements between Seller and Builder with respect to the conveyance of the Lots and all other matters contained herein and constitute the sole and entire agreement between Seller and Builder with respect thereto. This Agreement may not be modified or amended unless such amendment is set forth in writing and signed by both Seller and Builder.

D. All notices, payments, demands or requests required or permitted to be given pursuant to this Agreement shall be in writing and shall be deemed to have been properly given or served effective on the second (2nd) business day after being deposited in the United States mail, postpaid and registered or certified with return receipt requested; or when sent by private courier service for same-day delivery or one day after being sent by private courier service of nest-day delivery. Notices shall be sent to the respective addresses set forth below:

To Seller: Wolven Investments, LLC;
Attn: Jeff Klaasen
3115 Railway Dr.
Byron Center, MI 49315

To Purchaser: JTB Homes, LLC
Attn: Nate Bodbyl
1777 R W Berends Dr.
Wyoming, MI 49519

E. This Agreement shall inure to the benefit of and bind the parties hereto and their respective heirs, legal representatives, successors and permitted assigns.

16. Right of Selection. Notwithstanding anything in this Agreement to the contrary, Builder has the sole right and not the obligation to decide which Lot, if any, of the Lots set forth on Exhibit "B" to close on at any time.

17. Survival. All of the terms and conditions of this Agreement shall survive each Closing and be fully binding and enforceable.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement under seal as of the date first above written.

WITNESS:

_____

SELLER:
WOLVEN INVESTMENTS, LLC

By: _____

Its: Jeff Klaasen, Authorized Signer

_____

BUILDER:
JTB Homes, LLC

By: _____

Its: Nate Bodbyl, Authorized Signer

43 North Phase 2
Exhibit B

Unit #	Retail Lot Price
26	102,500
27	99,500
28	97,000
29	99,500
30	99,500
31	99,500
32	101,500
33	101,500
34	101,000
35	99,000
36	99,000
37	103,000
38	103,000
39	100,000
40	92,500
41	94,000
42	99,000
43	100,000
	99,500